



IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE THE CHIEF JUSTICE MR.S.MANIKUMAR

&

THE HONOURABLE MR. JUSTICE SHAJI P.CHALY

THURSDAY, THE 30TH DAY OF SEPTEMBER 2021 / 8TH ASWINA, 1943

WP(C) NO. 7261 OF 2017

PETITIONER/S:

ANOOP CHANDRAN
ENGINEER, CR-26, PREG [ESEG], LPSC/ISRO, VALIYAMALA,
THIRUVANANTHAPURAM.
BY ADV SUO MOTU

RESPONDENT/S:

- 1 UNION OF INDIA
REPRESENTED BY ITS SECRETARY, GOVERNMENT OF INDIA,
NEW DELHI.
- 2 STATE OF KERALA
REPRESENTED BY THE CHIEF SECRETARY TO THE GOVERNMENT
OF KERALA, SECRETARIAT, THIRUVANANTHAPURAM.
- 3 GOVERNMENT OF KERALA
REPRESENTED BY THE CHIEF SECRETARY TO GOVERNMENT OF
KERALA, SECRETARIAT, THIRUVANANTHAPURAM.
- 4 DEPARTMENT OF HOME
REPRESENTED BY THE ADDITIONAL CHIEF SECRETARY,
GOVERNMENT OF KERALA, SECRETARIAT,
THIRUVANANTHAPURAM.
- 5 STATE POLICE CHIEF
GOVERNMENT OF KERALA, THIRUVANANTHAPURAM.
- 6 THE KERALA STATE POLLUTION CONTROL BOARD
REPRESENTED BY ITS MEMBER SECRETARY,
THIRUVANANTHAPURAM.
- 7 DISTRICT COLLECTOR AND DISTRICT MAGISTRATE
THIRUVANANTHAPURAM.
- 8 DISTRICT COLLECTOR AND DISTRICT MAGISTRATE
KOLLAM.
- 9 DISTRICT COLLECTOR AND DISTRICT MAGISTRATE
PATHANAMTHITTA.
- 10 DISTRICT COLLECTOR AND DISTRICT MAGISTRATE
ALAPPUZHA.
- 11 DISTRICT COLLECTOR AND DISTRICT MAGISTRATE



- KOTTAYAM.
- 12 DISTRICT COLLECTOR AND DISTRICT MAGISTRATE
IDUKKI.
- 13 DISTRICT COLLECTOR AND DISTRICT MAGISTRATE
ERNAKULAM.
- 14 DISTRICT COLLECTOR AND DISTRICT MAGISTRATE
THRISSUR.
- 15 DISTRICT COLLECTOR AND DISTRICT MAGISTRATE
PALAKKAD.
- 16 DISTRICT COLLECTOR AND DISTRICT MAGISTRATE
MALAPPURAM.
- 17 DISTRICT COLLECTOR AND DISTRICT MAGISTRATE
KOZHIKODE.
- 18 DISTRICT COLLECTOR AND DISTRICT MAGISTRATE
WAYANAD.
- 19 DISTRICT COLLECTOR AND DISTRICT MAGISTRATE
KANNUR.
- 20 DISTRICT COLLECTOR AND DISTRICT MAGISTRATE
KASARAGOD.
- 21 THE TRAVANCORE DEVASWOM BOARD
REPRESENTED BY ITS SECRETARY, THIRUVANANTHAPURAM.
- 22 THE COCHIN DEVASWOM BOARD
REPRESENTED BY ITS SECRETARY, COCHIN.
- 23 THE GURUVAYOOR DEVASWOM BOARD
REPRESENTED BY ITS SECRETARY, GURUVAYOOR.
- 24 THE KODALMANIKYAM DEVASWOM
REPRESENTED BY ITS SECRETARY, IRINJALAKUDA.
- ADDL.25 THE MALABAR DEVASWOM BOARD,
REPRESENTED BY THE COMMISSIONER,
HOUSEFED COMPLEX, THENJIPALAM P.O.,
KOZHIKODE - 673 006.
- ADDL.26 THE KERALA STATE WAKF BOARD,
REPRESENTED BY THE CHIEF EXECUTIVE OFFICE,
VIP ROAD, NEAR KALOOR STADIUM, ERNAKULAM,
KOCHI - 682 017
- ADDITIONAL RESPONDENT NOS. 25 AND 26 ARE IMPEADED
SUO MOTU AS PER ORDER DATED 02.03.2017 IN W.P.(c) No.
7261 of 2017.
- SRI. T. NAVEEN, SC FOR R6
BY ADV SRI.K.P.SUDHEER, SC, FOR R22

OTHER PRESENT:

SRI.P.VIJAYAKUMAR,ASG FOR R1
SRI. TEK CHAND SR GP FOR R2 TO R5 AND R7 TO R20



2021:KER:37801

-3-

THIS WRIT PETITION (CIVIL) HAVING COME UP FOR ADMISSION ON
30.09.2021, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

**“C.R”****J U D G M E N T****S. Manikumar, C. J.**

Taking note of a letter dated 06.02.2017 sent by one Anoop Chandran, Valiyamala, Thiruvananthapuram, Registry has been directed to initiate *suo motu* action, and thus, W. P. (C) No. 7261 of 2017 has been registered.

2. Record of proceedings shows that on 10.02.2017, 14.02.2017 and 02.03.2017, this Court has passed the following interim orders:-

“1. Apart from treating this matter as a petition registered *suo motu* for consideration by the Division Bench dealing with Devaswom cases, it is also taken cognizance of under Article 226 of the Constitution of India.

2. The following authorities, institutions and establishments are hereby impleaded and shall be arrayed as respondents:

- 1) Union of India.
- 2) State of Kerala, represented by the Chief Secretary to the Government of Kerala.



- 3) Government of Kerala, represented by the Chief Secretary to the Government of Kerala.
- 4) Department of Home, Government of Kerala.
- 5) State Police Chief, Government of Kerala.
- 6) The Kerala State Pollution Control Board, represented by its Member Secretary.
- 7) District Collectors and District Magistrates of all the districts of Kerala
- 8) The Travancore Devaswom Board, represented by its Secretary
- 9) The Cochin Devaswom Board, represented by its Secretary.
- 10) The Guruvayoor Devaswom, represented by its Secretary.
- 11) Koodalmanikyam Devaswom, represented by its Secretary.

3. Sri.Anoop Chandran who sent the complaint will be arrayed as the petitioner. The Registry will inform him over phone about the next listing of this matter for further consideration.

4. Learned Assistant Solicitor General takes notice for 1st respondent. Learned Senior Government Pleader takes notice for respondents 2 to 5 and all officers/authorities enlisted at Serial No.7. Respective learned standing counsel take notice for respondents at Serial Nos.6, 8, 9, 10 and 11.

Show the name of the learned Senior Government Pleader, the learned Assistant Solicitor General and the learned standing counsel appearing for the other respondents in the cause list.”

“2. The learned Senior Government Pleader is justified in saying that the complaint appears to be only as regards places of



worship (in particular, places of hindu religious worship). The menace of sound pollution and violation of laws under which limits as to sound have been fixed, has to apply not merely to places of worship, but as regards any user of loudspeakers etc. Unless any institution or programme is exempted by the competent authority under any law authorising grant of such exemption, the regulations under the laws governing sound pollution and also user of such public address systems and equipments will have to be enforced, appropriately. The State Government, Union of India, the Kerala State Pollution Control Board authorities and the Institutions which have been impleaded for the time being, may place their affidavits responding to the issue raised by the complainant and noticed through order dated 10.02.2017 and this order, before the next date of hearing.”

“1. The orders issued on 10.2.2017 and 14.2.2017 in D.B.P. No.10 of 2017 will be treated as orders issued in this suo motu writ petition today.

2. Having regard to the contents of Circular No.F1/92/Home dated 7.1.1993 issued by the Government of Kerala through the Home (F) Department, it is directed that the State Police Chief, all District Collectors, District Magistrates, all Commissioners of Police, all Superintendents of Police and all officers under their command will ensure that the contents of the said Circular are given effect to in letter and spirit, except at the peril of any defaulter of such official duties, by way of penalty or other impositions as may be ordered, if any dereliction in that regard is noted.



3. The Malabar Devaswom Board, represented by the Commissioner, Housefed Complex, Thenjipalam P.O., Kozhikode-673006, and the Kerala State Wakf Board, represented by the Chief Executive Officer, VIP Road, Near Kaloor Stadium, Ernakulam, Kochi-682017, are suo motu impleaded as additional respondents. It is clarified that any proper party, who is desirous to be heard, may apply for impleadment.

A gist of this order may be appropriately drawn up by the Registry and issued in the form of a notice which may be published at State expense through the Government.”

3. On this day, when the matter came up for hearing, Mr. V. Tek Chand, learned Senior Government Pleader, submitted that certain circulars have been issued in the year 2011 under the provisions of Kerala Police Act, 2011.

4. It is also brought to the notice of this Court that under the Environment Protection Act, 1986, the Noise Pollution (Regulation and Control) Rules, 2000, have been framed. Relevant Sections of the Rules, 2000 are extracted:-

“3. Ambient air quality standards in respect of noise for different areas/zones.



(1) The ambient air quality standards in respect of noise for different areas/zones shall be such as specified in the Schedule annexed to these rules.

(2) The State Government (shall categorize) the area into industrial, commercial, residential or silence areas/zones for the purpose of implementation of noise standards for different areas.

(3) The State Government shall take measures for abatement of noise including noise emanating from vehicular movements, (blowing of horns, bursting of sound emitting fire crackers, use of loud speakers or public address system and sound producing instruments) and ensure that the existing noise levels do not exceed the ambient air quality standards specified under these rules.

(4) All development authorities, local bodies and other concerned authorities while planning developmental activity or carrying out functions relating to town and country planning shall take into consideration all aspects of noise pollution as a parameter of quality of life to avoid noise menace and to achieve the objective of maintaining the ambient air quality standards in respect of noise.

(5) An area comprising not less than 100 metres around hospitals, educational institutions and courts may be declared (by the State Government) as silence area/zone for the purpose of these rules.

[Provided that, an area shall not fall under silence area or zone category, unless notified by the State Government in



accordance with sub-rule(2).]

4. Responsibility as to enforcement of noise pollution control measures. (1) The noise levels in any area/zone shall not exceed the ambient air quality standards in respect of noise as specified in the Schedule.

(2) The authority shall be responsible for the enforcement of noise pollution control measures and the due compliance of the ambient air quality standards in respect of noise.

(3) The respective State Pollution Control Boards or Pollution Control Committees in consultation with the Central Pollution Control Board shall collect, compile and publish technical and statistical data relating to noise pollution and measures devised for its effective prevention, control and abatement.

5. Restrictions on the use of loud speakers/public address system (and sound producing instruments).

(1) A loud speaker or a public address system shall not be used except after obtaining written permission from the authority.

(2) A loud speaker or a public address system or any sound producing instrument or a musical instrument or a sound amplifier shall not be used at night time except in closed premises for communication within, like auditoria, conference rooms, community halls, banquet halls or during a public emergency.



(3) Notwithstanding anything contained in sub-rule (2), the State Government may subject to such terms and conditions as are necessary to reduce noise pollution, permit use of loud speakers or public address systems and the like during night hours (between 10.00 p.m. to 12.00 midnight) on or during any cultural, religious or festive occasion of a limited duration not exceeding fifteen days in all during a calender year. The concerned State Government or District Authority in respect of its jurisdiction as authorized by the concerned State Government shall generally specify in advance, the number and particulars of the days on which such exemption should be operative.

Explanation.- For the purposes of this sub-rule, the expressions-

(i) “festive occasion” shall include any National function or State function as notified by the Central Government or State Government; and

(ii) “National function or State function” shall include”-

(A) Republic Day;

(B) Independence Day;

(C) State Day; or

(D) such other day as notified by the Central Government or the State Government.

(4) The noise level at the boundary of the public place, where loudspeaker or public address system or any other noise



source is being used shall not exceed 10 dB (A) above the ambient noise standards for the area or 75 dB (A) whichever is lower;

(5) The peripheral noise level of a privately owned sound system or a sound producing instrument shall not, at the boundary of the private place, exceed by more than 5dB (A) the ambient noise standards specified for the area in which it is used.

5A. Restrictions on the use of horns, sound emitting construction equipments and bursting of fire crackers.

(1) No horn shall be used in silence zones or during night time in residential areas except during a public emergency.

(2) Sound emitting fire crackers shall not be burst in silence zone or during night time.

(3) Sound emitting construction equipments shall not be used or operated during night time in residential areas and silence zones.

6. Consequence of any violation in silence zone/area.

Whoever, in any place covered under the silence zone/area commits any of the following offence, he shall be liable for penalty under the provisions of the Act:

(i) whoever, plays any music or uses any sound amplifiers,

(ii) whoever, beats a drum or tom-tom or blows a horn either musical or pressure, or trumpet or beats or sounds any instrument, or



(iii) whoever, exhibits any mimetic, musical or other performances of a nature to attract crowds.

(iv) whoever, bursts sound emitting fire crackers; or

(v) whoever, uses a loud speaker or a public address system.

7. Complaints to be made to the authority. (1) A person may, if the noise level exceeds the ambient noise standards by 10 dB(A) or more given in the corresponding columns against any area/zone (or, if there is a violation of any provision of these rules regarding restrictions imposed during night time,) make a complaint to the authority.

(2) The authority shall act on the complaint and take action against the violator in accordance with the provisions of these rules and any other law in force.

8. Power to prohibit etc. continuance of music sound or noise. (1) If the authority is satisfied from the report of an officer in-charge of a police station or other information received by him (including from the complainant) that it is necessary to do so in order to prevent annoyance, disturbance, discomfort or injury or risk of annoyance, disturbance, discomfort or injury to the public or to any person who dwell or occupy property on the vicinity, he may, by a written order issue such directions as he may consider necessary to any person for preventing, prohibiting, controlling or regulating:



(a) the incidence or continuance in or upon any premises of -

(i) any vocal or instrumental music,

(ii) sounds caused by playing, beating, clashing, blowing or use in any manner whatsoever of any instrument including loudspeakers, (public address systems, horn, construction equipment, appliance or apparatus) or contrivance which is capable of producing or re-producing sound, or

(iii) sound caused by bursting of sound emitting fire crackers, be the carrying on in or upon, any premises of any trade, avocation or operation or process resulting in or attended with noise.

b. The carrying on in or upon, any premises of any trade, avocation or operation or process resulting in or attended with noise.

(2) The authority empowered under sub-rule (1) may, either on its own motion, or on the application of any person aggrieved by an order made under sub-rule (1), either rescind, modify or alter any such order:

Provided that before any such application is disposed of, the said authority shall afford to the applicant (and to the original complainant, as the case may be) an opportunity of appearing before it either in person or by a person representing him and showing cause against the order and shall, if it rejects any such application either wholly or in part, record its reasons for such rejection.”



5. It is further brought to the notice of this Court that the then Kerala Police Act, 1960, empowered the authorities to issue circulars to control noise pollution. Relevant Sections of the Act reads thus:-

“16. Inspector-General to control force and make rules.- The Inspector General may, from time to time, subject to the approval of the Government, frame such orders and rules, not inconsistent with this Act, as he may deem expedient, relating to the general government and distribution of the police force, the places of residence, the classification, rank and particular service and duties of the members thereof, their inspection, the description of arms, accouterments, and other necessities to be furnished to them, to the collecting and communicating intelligence and information, for preventing abuse or neglect, and for rendering such force efficient in the discharge of all its duties.

19. Regulations of public assemblies and processions and music in streets. The Superintendent of Police may, as occasion requires, subject to any order or direction, if any, issued by the District Magistrate-

(i) direct the conduct of assemblies and processions in any street and specify, by general or special notice, the routes by which and the times at which such procession may pass;

(ii) require by general or special notice on being satisfied that any person or class of persons intend to convene or collect an assembly in any street or to form a procession which would in his judgment, if uncontrolled, be likely to cause a breach of the



peace, that the persons convening or collecting such assembly or directing or promoting such procession shall not do so without applying for and obtaining a license;

And on such application being made, the Superintendent may issue a license specifying the names of the licensees and defining the conditions on which alone such assembly or procession is to be permitted to take place;

(iii) prevent obstructions an the occasion of all processions and assemblies and in the neighbourhood of all places of worship during the time of public worship, and in all cases when any street or public place or place of public resort may be thronged or liable to be obstructed; or

(iv) prohibit or regulate the use of music or sound amplifiers or drums, tom-toms or other noisy instruments in any street or public place and in any private place if their use may cause annoyance to neighbours.

20. Powers to deal with assemblies and processions violating conditions of licence.

(1) Any Magistrate or any Police officer not below the rank of an Inspector or any Police officer in charge of a Police station may stop any procession which violates the conditions of license granted under Sec. 19 and may order it or any assembly which violates any such conditions as aforesaid to disperse.

(2) Any procession or assembly which neglects or refuses to obey any order given under subsection (1) shall be deemed to be an unlawful assembly.



28. Issue of orders for maintenance of order at religious ceremonies, etc. (1) In any case of an actual or intended religious or ceremonial or corporate display or exhibition or organised assemblage in any street or public place, as to which or the conduct of or participation in which it appears to the District Magistrate that a dispute or contention exists which is likely to lead to disturbance of the peace, the District Magistrate may give such orders as to the conduct of the persons concerned towards each other and towards the public as he deems necessary and reasonable under the circumstances, regard being had to the apparent legal rights and to any established practice of the parties and of the persons interested. Every such order shall be published in the place wherein it is to operate, and all persons concerned shall be bound to conform to the same.

(2) Any order under sub-section (1) shall be subject to a decree, injunction or order made by a court having jurisdiction, and shall be recalled or altered on its being made to appear to the District Magistrate that it is inconsistent with a judgment, decree, injunction or order of such court.”

6. It is also brought to the notice of this Court that the Kerala Police Act, 2011, also empowers the authorities to issue circulars to control noise pollution. Chapter VI of the Kerala Police Act, 2011 deals with police regulations, in which, Section 72 speaks about the constitution of traffic regulatory committees.



7. Section 73(2)(b) which is relevant to the context, reads thus:

“72. Traffic regulatory committees.- (1) In every Grama Panchayat, Municipality and Corporation Traffic Regulatory Committees shall be constituted as may be prescribed, for regulating matters in respect of traffic.

(2) The concerned head of the Local Government institution shall be the Chairman of the Traffic Regulatory Committee and the nominees of the District Magistrate, the District Police Chief, the Regional Transport Officer and the Executive Engineer of Public Works Department shall be the members of the said committee.

(3) The Traffic Regulatory Committee shall issue orders, not inconsistent with the provisions of the Motor Vehicles Act, 1988 (Central Act 59 of 1988) and the Kerala Road Safety Act, 2007 (Act 8 of 2007) and the rules made thereunder, for preventing danger, obstruction and inconvenience caused to the general public in respect of traffic in the following matters. Such orders issued shall be complied with by the Government Departments concerned, the officers and the general public, namely:-

(a) regulate the manner and time of traffic of all kinds in public places;

(b) regulate the gateways, festoons, banners, hoardings, signs, representations, illuminated displays, construction activity, trade, welding, environmental pollution, nuisance by noise, blasting of rocks, mining, bursting of crackers, flying of kites and fireworks etc. seen in any



property in the manner having the possibility of distracting attention of the public road users or causing danger to them;

XXXXXXXXXXXXXXXXXXXXX”

8. Section 78 of Chapter VI speaks about regulation to prevent violence and it reads thus:

“78. Regulation to prevent violence.- (1) The District Police Chief may, if it is satisfied from the circumstances that it is necessary for the preservation of public peace or public safety, by notification, either proclaimed or specifically addressed to individuals, prohibit or control in any manner for a period not exceeding fifteen days in any place, -

(a) the preparation, storage or transport of destructive material, explosives, gun powder, stones or other missiles or instruments which can be used for the making of or launching of missiles or any weapon or any other object which can be used for attack; or

(b) the exhibition of living persons or corpses; or

(c) the preparation, exhibition, representation, distribution or dissemination of pictures, symbols, placards, printed matter, pamphlets, books, audio-video recordings, digital records, posters which may inflame communal or religious passions or offend general standards of public morality or seriously affect public peace or endanger security of the nation.

XXXXXXXXXXXXXXXXXXXXX”



9. Circulars produced by the learned Senior Government Pleader
are extracted hereunder:

GOVERNMENT OF KERALA
HOME (F) DEPARTMENT

F1/92/Home

Thiruvananthapuram,
Dated 7.1.1993.

CIRCULAR

Sub: Law and Order-Use of loudspeakers-Further
Guidelines –issued.

Ref: 1. G.O.(Ms)No.194/67/Home dated 22.6.1967.

2. Judgment in O.P.No. 9560 of 1988-S High Court of Kerala.

The following further guidelines are issued for regulation and restriction of use of loudspeakers etc.

(1) For functions like Marriages, Birthday Celebrations, house-warming and the like, only box type loudspeakers should be used and horn type sound amplifiers should be totally banned. The sound created by the amplifier will confine to the houses or hills where such functions are held.

(2) In temples, churches and mosques also box type sound amplifier should be used. The use must be adjusted in such a way that sound will not go beyond the boundary of their premises. The call for prayer (Azan) in the mosque is relaxed in this case as it is only one minutes duration. For religious discourses, playing of devotional songs, Friday sermons in the mosque and also other ceremonies and functions in the churches this rule should be strictly enforced.

(3)The use of loudspeakers in the street and vehicles must be avoided as far as possible. Without prior permission of the Police nobody will be permitted to use loudspeakers.

(4) Air horns and high type horns should be banned.

(5) Under no circumstances, sound amplifiers shall be used between 10-00 p.m. and 6.00 a.m.

HAJMUNISA ALI AKBAR
JOINT SECRETARY

To



No. U6-30380/2002
Police Headquarters,
Thiruvananthapuram,
Dated: 05-12-2002.

CIRCULAR NO. 17/2002

Sub: - Public order – use of Loud Speakers – Revision of system of granting licence – instructions issued.

Ref: - 1. PHQ Circular Nos. 26/1974, 7/1980 and 28/1995.

Under the provisions of the Environment (Protection) Act 1986 the Government of India had issued Noise Pollution (Regulation and Control) Rules 2000. The objective of the Rules read with the Provisions of the Act is to reduce the level of sound pollution caused by unrestricted use of loud speakers.

In the light of the Act and Rules and in accordance with the regulatory functions under the Kerala Police Act 1960, a Notification dated 28-11-2002 has been issued by the Director General of Police prescribing regulations regarding grant of licences for use of loud speakers. (Annexure-1). A specimen of the form prescribed vide item 5 of the Notification is given in Annexure -2.

Therefore in super session of the PHQ Circulars referred above, the following instructions are issued for achieving uniformity in implementation of the Notification.

1. The Competent authority for issue of the licence is prescribed as either the SDPO or SP/CP. Since the competent Officer is required to have adequate knowledge of the classification of Zones and the permitted level of sound (in decibels), applications for licence will not be entertained by Range DIGs, Zonal IGPs and PHQrs.
2. The sanctioning authority shall ensure that all the particulars required in Column 1 to 4 are furnished in the prescribed form, while issuing the licence.
3. No licence shall be granted to an applicant for use of loud speakers for more than 10 days under one application.
4. It will be the personal responsibility of the competent authority to ensure that the licence is issued strictly in accordance with the conditions laid



down in the Notification.

- 5 Before the grant of licence the competent authority should be aware of the classification of the various zones in his jurisdiction and the level of the sound (in decibels) allowed in each zone.

It is clarified that with the issuance of this Notification, the restrictions ordered by the Hon'ble High Court of Kerala in WA No. 3125 of 2001 are no more operative.

It is expected that with proper application of mind by SDPOs/SPs/CPs, the provisions of the Notification will be enforced effectively and the objectives of the Environment (Protection) Act 1960 and the Noise Pollution (Regulation and Control) Rules 2000 achieved.

K.J. JOSEPH
DIRECTOR GENERAL OF POLICE.

To

All List 'B' Officers & All SDPOs.
Stock File/Circulation File.



No.1/CAMP/DGP/2004
POLICE HEADQUARTERS
THIRUV ANANTHAPURAM
DATED: 21/12/2004

EXECUTIVE DIRECTIVE No. 25/2004

Sub:- Loud speakers and public address system - restriction in use-instructions - issued

Ref:- PHQ Circular No.17 /2002.

Please refer to the Circular cited. Instructions were issued regarding the licensing of loud speakers and public address system in the Circular.

This is the festival season. The office bearers of the religious institutions and individuals perform religious functions all over the State. In these functions loud speaker's and public address systems are used indiscriminately without restricting the time and type of instruments as laid down in the statutes. This causes a lot of inconvenience to the public especially the sick and infirm by way of noise pollution. This is also the time of examination. The students preparing for their examinations both State and all India level are seriously affected by sound pollution. A number of complaints have been received in this matter. Therefore, the following instructions are issued.

1. Notice will be given to all the religious institutions that loud speakers and public address systems shall not be used between 22.00 hrs to 06.00 hrs except in closed premises.
2. It shall be ensured that loud speakers and public address systems are used only with the permission of the concerned authority.
3. It shall also be ensured that a silent zone of 100 meters is kept around hospitals, educational institutions and Courts,

P.K.H. THARAKAN IPS
Director General of Police

To
All SPs/CPs of Districts
Range DIGs/Zonal IGP's/ ADGP (Tnt)/ ADGP (Ops)
Copy to File No.U6/30380/2003,



No. 1/CAMP/DGP/2005
POLICE HEADQUARTERS,
THIRUVANANTHAPURAM
DATED: 03-01-2005

EXECUTIVE DIRECTIVE No. 02/2005

Sub:- Loud speakers and public address system –restriction in use-instructions - issued

Ref:- PHQ Circular No.17 /2002.

Please refer to the circular cited. Instructions were issued regarding the licensing of loud speakers and public address system in the Circular.

This is the festival season. The office bearers of the religious institutions and individuals perform religious functions all over the State. In these functions loud speakers and public address systems are used indiscriminately without restricting the time and type of instruments as laid down in the statutes. This causes a lot of inconvenience to the public especially the sick and infirm by way of noise pollution. This is also the time of examinations. The students preparing for their examinations both State and all India level are seriously affected by sound pollution. A number of complaints have been received in this matter.

Hence, a notice will be given to all the religious institutions enclosing a copy of the PHQ notification dated 28-11-2002 (copy enclosed) and an extract of Sec. 15 of the Environment (Protection) Act, 1986, highlighting the fact that violation of these instructions shall entail imprisonment which may extend to five years and a fine of Rs. 1 lakh.

Compliance shall be reported by 31st January 2005.

P.K.H. THARAKAN IPS
Director General of Police

All SPs/CPs of Districts
Range DIGs/Zonal IGPs/ ADGP (Tnt)/ ADGP (Ops)
Copy to File No.U6/30380/2003.

**“GOVERNMENT OF KERALA****Abstract**

Environment Department – Noise Pollution (Regulation and Control) Rules, 2000 – implementation – orders issued.

ENVIRONMENT (A) DEPARTMENT

G.O. (Rt) No. 120/11/Env. Dated Thiruvananthapuram 08.11.2011

Read: (1) Notification G.O. (P) No. 111/2002 dated 29.07.2002 from Home (F) Department
(2) Representation dated 30.05.2011 submitted by Shri. R. Ramachandran Nair, Susmitham, Padinjattinkara, Kottarakara

ORDER

As per the Notification read as 1st paper above, in exercise of the powers conferred by clause (c) of Rule 2 of the Noise Pollution (Regulation and Control) Rules, 2000, Government have designated the District Magistrates, the Commissioners of Police / the Superintendents of Police and the Deputy Superintendent of Police (Sub Divisional Officers) as the authorities under the said rules for enforcement of ambient air quality standards in respect of noise pollution within their respective jurisdiction in the State. 44cm

2. Government have received several complaints regarding noise pollution especially because of loud speakers and the negligence of the authorities to enforce the regulations.

3. Government have examined the matter in detail and hereby direct that all the empowered authorities in the Police Department shall strictly enforce the rules with regard to noise pollution, especially when loud speakers are used.

4. The Pollution Control Board authorities will render the necessary technical assistance to police authorities for enforcement of ambient air quality standards in respect of sound pollution in accordance with the regulations in force.

(By order of the Governor)

G. RAJEEV

Additional Secretary to Government”

**CoB MESSAGE**

N/R 466 OR 150

TO : ALL DISTRICT POLICE CHIEFS**INFO : ALL IsGP RANGES****FROM : STATE POLICE CHIEF, KERALA****No. U1/10891 /2017/PHQ****DATED: 24/01/2017****SUB : USE OF LOUD SPEAKERS REGULATIONS -REG**

PERMISSION TO OPERATE LOUD SPEAKERS/MIKE PERMISSION IS BEING GIVEN BY POLICE PRESCRIBING VARIOUS CONDITIONS (.) HOWEVER, REPEATED COMPLAINTS ARE RECEIVED FROM PUBLIC ESPECIALLY FROM THIRUVANANTHAPURAM AND KOLLAM REGIONS (.) ALL DISTRICT POLICE CHIEFS ARE DIRECTED TO ENSURE THE FOLLOWING :

1. THE INSTRUCTIONS ARE RELATED TO THE DAY TO DAY USE OF LOUD SPEAKERS BY RELIGIOUS INSTITUTIONS/OTHER INSTITUTIONS NOT RELATED TO ANNUAL ULSAVAM OF MAJOR TEMPLES, MOSQUES , CHURCHS OR OTHER FESTIVALS (.)
2. ALL INSTITUTIONS SHOULD BE REQUESTED TO ADHERE TO THE CONDITIONS PRESCRIBED IN THE MIKE SANCTION ORDER, PERMITTING THEM TO USE LOUD SPEAKERS LIKE OPERATING BELOW SPECIFIC DECIBELS/TIMING ETC (.)
3. FIRM ACTION SHOULD BE TAKEN AGAINST VIOLATORS(.)
4. DISTRICT POLICE CHIEFS SHOULD CONDUCT MEETING OF ORGANIZATIONS /INSTITUTIONS TO SENSITIZE THEM ABOUT LOUD AND INDISCRIMINATE USE OF LOUD SPEAKERS (.)
5. AFTER GIVING PERMISSIONS AND SUFFICIENT SENSITIZATIONS CHECKS SHOULD BE CONDUCTED TO CONTROL VIOLATIONS (.)
6. THE MIKE OPERATORS SHOULD BE WARNED STRICTLY NOT TO GO AGAINST THE STIPULATED NORMS ETC (.) SPECIFIC DIRECTIONS HAVE BEEN ISSUED REGARDING THE DICIBEL OF SOUND AS PER THE NOISE POLUTION (REGULATION AND CONTROL) RULES 2000, KERALA GOVERNMENT NOTIFICATION NO. SRO-289/2002 AND KERALA POLICE ACT (.)
7. IF ANY LAXITY IS NOTICED, CONCERNED SHO / CI WILL BE FIRMLY DEALT WITH (.)

**“GOVERNMENT OF KERALA**

High Court Direction
Immediate

No.17113/F1/2017/Home

Home (F) Department
Thiruvananthapuram.
Dated: 06-06-2017.

From

The Additional Chief Secretary.

To

The State Police Chief, Thiruvananthapuram
The Land Revenue Commissioner, Thiruvananthapuram
All District Collectors
All District Police Chiefs & City Police Commissioners.

Sir,

Sub: Home Department – Use of Loud Speakers –
Guidelines issued – Reg.

Ref: 1) Circular No.F1/92/Home dated 7.01.1993.

2) Order dated 02-03-2017 of the Hon’ble High Court
in WP(C)No.7261/2017(S).

I am directed to invite your attention to the references cited.
The Hon’ble High Court in the Order 2nd cited in the Suo Motu
WP(C)No.7261/2017 (S) has ordered inter alia as follows:

“It is directed that the State Police Chief, all District Collectors, District Magistrates, all Commissioner of Police, all Superintendent of Police and all officers under their command will ensure that the contents of the Circular 1st cited are given effect to in letter and spirit, except at their peril of any defaulter of such official duties, by way of penalty and other imposition as may be ordered, if any dereliction in that regard is noted.”

It is also informed that the Hon’ble High Court has also directed a gist of the order to be drawn by the High Court Registry is to be published at the State expense through the Government and action in this regard is being taken by Government through Information & Public Relations Department.

Therefore, I am directed to forward herewith a copy of the said order and its enclosures for information and necessary action.



A report regarding the action taken in this regard may be furnished to Government immediately.

Yours faithfully,

Sd/-

R.Subhash

Under Secretary

For Additional Chief Secretary to Government.”

10. That apart, the Hon'ble Supreme Court, as well as High Courts, in a catena of decisions dealing with noise pollution, have held as under:

(i) In **D. Anantha Prabhu v. The District Collector, Ernakulam and Ors.** (AIR 1975 Ker 117), this Court held as under:

“10. The next question for consideration is whether the ban on the use of 'mike, Loudspeakers' etc. is a reasonable restriction in the light of Clause (2) of Article 19. Ext. P2 proceedings do not state any reason for imposing the condition. The nub of what the 1st respondent states in his counter affidavit is that the ban was aimed at preventing unbeatable nuisance, annoyance and disturbance to the inhabitants of the locality and neighbourhood, to all the people living in the vicinity of the Durbar Hall Ground. It is stated that, therefore, he has formed an opinion "that hereafter except in exceptional circumstances it is not advisable or desirable in the public interest to grant permission to use Durbar Hall Ground to any one which may involve incidentally the use of loud-speakers particularly extending to night hours." It is nowhere stated, and it was not argued before me, that the nuisance, if any, arising out of use of mike and loud-speakers at the meeting would amount to a threat to any one or the other of the matters specified in Article 19(2), or that the ban is necessary because speeches might amount to contempt of court, defamation or incitement an offence. If it were for any of these reasons, one would not have expected the 1st respondent to allow the meeting itself on these grounds, it may also be noticed



that as pointed out in Madhu Limaye's case AIR 1971 SC 2486 already referred to acts which disturb only the serenity of others are not threats to public order. The ban is therefore not a reasonable restriction justifiable under Clause (2) of Article 19.

13. The next question is as to the nature of the order that should be passed in this case. The first relief sought for is to issue a writ of certiorari quashing Ext. P2 proceedings. However, us contended on behalf of the respondents the petitioner as per Ext. P1 application sought permission to use the Durbar Hall Ground for the annual day celebrations, and the same was granted. The petitioner cannot therefore challenge the grant of sanction. The learned counsel for the petitioner in fact confined the first relief so far as condition No. 1 in Ext. P2 is concerned. The question is whether this could be done. Petitioner has also prayed for mandamus directing the sanction of use of mike, loudspeakers etc. and also for such other writs as this Court feels fit. Condition No. 1 is severable, and the remaining portion of Ext. P2 proceedings can remain without condition No. 1. The said condition is invalid and violative of Articles 14 and 19(1)(a) of the Constitution of India. I think this case comes within the scope of the principles laid down in Mahaboob Sheriff and Sons v. Mysore S. T Authority AIR 1960 SC 321 and Sewpujanrai I. Ltd. v Collector of Customs AIR 1958 SC 845 for all the reliefs read together what the petitioner seeks is that the use of mike, loudspeakers etc. at the meeting shall not be prevented by respondents Nos. 1 and 2."

(ii) In **M. Veerateswaran v. The Deputy Collector cum Sub-Divisional Executive Magistrate** [(2003) 2 MLJ 578], High Court of Madras held as under:

"25. In Appa Rao v. Government of Tamil Nadu, 1995 (1) LW 319, Writs of Mandamus for directing the State Government to impose strict conditions for issue of licence for use of amplifiers and loudspeakers and for directing Director General, Police (Law and Order) to impose total ban on use of horn type loudspeakers and amplifiers and air horns of automobiles were sought. After referring to the provisions of Madras City Police Act (1888), Madras Towns Nuisance Act (1989), Tamil Nadu Motor Vehicles rules, Central Motor Vehicles Act and Rules, Tamil Nadu Police Act and the relevant G.Os. as



also several decisions of various Courts, the Division Bench gave certain guidelines. G.O.Ms. No. 3485, dt.29.12.1977 and the guidelines are extracted below:

- (1) Wide publicity to G.O.Ms.3485, dt.29.12.77 with Annexure, published in the English and Tamil Dailies;
- (2) Conditions set out in Annexure to be in the form of application for license to use loudspeakers or amplifiers;
- (3) Such conditions shall also be set out in the licence granted by authorities;
- (4) Both in the form of an Application and the licence, warning about consequences of violation of any condition to be set out; and
- (5) A separate cell to be set up in the Office of the Commissioner of Police and superintendent of Police in each district, to receive complaints against violation of conditions.

Conditions for grant of loudspeaker licence, as set out by the Bench, are as follows:

- (1) Amplifiers can be used only between 9 A.M. To 10.30 P.M. and for 3 hours at a time. The duration of 3 hours is relaxable under special circumstances.
- (2) No extension-speaker should be put up outside the premises for which the licence is issued. Relaxable in the case of temples, churches and mosque on some occasions.
- (3) Only Box type speaker should be used.
- (4) The volume should be such low that it is not heard outside the premises.
- (5) If any misuse is noticed licence will be cancelled.
- (6) The installation of loudspeakers and mike sets for which the licence is issued should be done only by an electrical contractor having at least a valid "B" Contractor's licence issued by the Electrical Licensing Board of the State and operated only by a person having a wiremen competency certificate issued by the



Electrical licensing Board. Non compliance of the condition is not only punishable under the Madras City Police Act but also under the Indian Electricity Rules, 1956 for violation of Rule 36 thereof.

(7) No sound amplifier shall face and no person shall use a sound amplifier, within (prescribe) the limits of hospital, place of worship or an educational institution.

(8) Any Police Officer on duty above the rank of Head Constable may require any party to stop using or remove any sound amplifier the using of which, may be a nuisance or cause obstruction and it shall be stopped Or removed as the case may be immediately.

(9) Any Police Officer on duty above the rank of Head Constable may seize any sound amplifier or other instrument used in amplifying which has been or appears to have been used in contravention of any of the conditions stipulated.

(10) Loudspeakers should not be allowed to be installed on towers and temple walls, churches and mosques, so as to face the surrounding streets and areas, should be installed within the precincts and turned inwards so that the music is audible only within the precincts of the temple/church/mosque. Exemption will be given during the month of Ramzan when the calls of the Muazzine for prayers is traditionally made from the mosque tower."

This decision has been approved by the Supreme Court in Church of God In India v. K.K.R. Majestic Colony Welfare Association, (AIR 2000 SC 2773). That was an appeal against the decision of a learned single judge (Akbar Basha Khadiri, J.) of this Court in a criminal original petition, filed by a Welfare Association, invoking the inherent jurisdiction of this Court under Section 482 of the Code of Criminal Procedure, directing the police - the Superintendent of Police and the Inspector General of Police to take action against the sixth respondent/the appellant before the Supreme Court to abate noise pollution. The details are as under:

"The appellant was a minority, denominational Church against whom complaints had been lodged by the respondent welfare association for causing noise pollution during the course of their regular prayer



service. It was undisputed that the Church used loudspeakers, drums and other instruments during prayers. The Joint Chief Environmental Engineer of the Tamil Nadu Pollution Control Board on 23.5.1996 wrote to the Superintendent of Police concerned directing him to take action on the complaint; on 12.6.1996, he wrote again to the Superintendent and enclosed the analysis report of the ambient noise level survey, which had been conducted in the neighbourhood of the appellant Church. The report indicated that the vehicles plying on the nearby main road were significant contributors to the high noise level.

On behalf of the Church it was contended that the petition was a motivated one, aimed at disrupting the religious activities of a minority religious institution. It was also pointed out that much of the noise was contributed by vehicular traffic nearby. This Court relying on Appa Rao's case, (supra) directed the police to take the steps necessary to reduce the noise level to the extent permitted under the guidelines laid down in Appa Rao's case. The police was also directed to take action in respect of the vehicles and also to ensure that the Church loudspeakers were kept at a lower level. This Court also found that there was no malice or objectionable motive in the petition filed by the Welfare Association. A definite stand was taken by the Church that the President of the Welfare Association was a member of RSS and that he had a malicious desire to put an end to the prayers held in the church. The learned Judge found, on a perusal of the complaint and other documents, that at the time when the complaint was preferred, one Parimala Sekaran was the President, one Shabbir, a Muslim was the Vice President, who had preferred the complaint, one Christopher a Christian was the Secretary, the Joint Secretary was a Muslim, the Treasurer was a Christian and the General Adviser was a Hindu. The General Advisor later became the President of the Association. The learned Judge did not find any tinge of malice and malicious wish to cause any hindrance to the free practice of religious faith of the Church.

The Supreme Court confirmed the decision of this Court and approved Appa Rao's case. It observed as follows:

Undisputably no religion prescribes that prayers should be performed by disturbing the peace of others nor does



it preach that they should be through voice-amplifiers or beating of drums. In the name of religion nobody can be permitted to add to noise pollution or violate noise pollution norms. Even if there be a religious practice to use voice amplifiers, it should not adversely affect the rights of others including that of being not disturbed in their activities.

"In our view, in a civilized society in the name of religion, activities which disturb old or infirm persons, students, or children having their sleep in the early hours or during day-time or other persons carrying on other activities cannot be permitted. It should not be forgotten that young babies in the neighbourhood are also entitled to enjoy their natural right of sleeping in a peaceful atmosphere. A student preparing for his examination is entitled to concentrate on his studies without their being any unnecessary disturbance by the neighbours. Similarly, old and infirm are entitled to enjoy reasonable quietness during their leisure hours without there being any nuisance of noise pollution. Aged, sick, people afflicted with psychic disturbances as well as children up to 6 years of age are considered to be very sensible to noise. Their rights are also required to be honoured.

Under the Environment (Protection) Act, 1986, rules for noise pollution level are framed which prescribe permissible limits of noise in residential, commercial, industrial areas or silence zone. The question is - where the appellant can be permitted to violate the said provisions and add to the noise pollution? In these days, the problem of noise pollution has become more serious with the increasing trend towards industrialization, urbanization and modernization. Noise is having many evil effects including danger to the health. It may cause interruption of sleep, affect communication, loss of efficiency, hearing loss or deafness, high blood pressure, depression, irritability, fatigue, gastro-intestinal problems, allergy, distraction, mental stress and annoyance. This also affect animals alike. The extent of damage depends upon the duration and the intensity of noise. Sometimes it leads to serious law and order problem. Further, in an organized society, rights are related with duties towards others including neighbours. The relevant rules under the Noise Pollution (Regulation and Control) Rules, 2000 framed by the



Central Government under provisions of the Environment Protection Act, 1986. Rule 3 of the Noise Pollution (Regulation and Control) Rules, 2000 provides for ambient air quality standards in respect of noise for different areas/zones as specified in the Schedule annexed to the rule. Other relevant rules are:

"4. Responsibility as to enforcement of noise pollution control measures. - (1) The noise levels in any area/zone shall not exceed the ambient air quality standards in respect of noise as specified in the Schedule.

(2) The authority shall be responsible for the enforcement of noise pollution control measures and the due compliance of the ambient air quality standards in respect of noise.

5. Restrictions on the use of loudspeakers/public address system. - (1) A loudspeaker or a public address system shall not be used except after obtaining written permission from the authority.

(2) A loudspeaker or a public address system shall not be used at night (between 10.00 p.m. to 6.00 a.m. Except in closed premises for communication within, e.g. Auditoria, conference rooms, community halls and banquet halls.

6. Consequences of any violation in silence zone/area. - Whoever, in any place covered under the silence zone/area commits any of the following offence, he shall be liable for penalty under the provisions of the Act:-

(i) whoever, plays any music or uses any sound amplifiers.

(ii) whoever, beats a drum or tom-tom or blows a horn either musical or pressure, or trumpet or beats or sounds any instrument, or

(iii) whoever, exhibits any mimetic, musical or other performances of a nature to attract



crowds.

7. Complaints to be made to the authority -

(1) A person may, if the noise level exceeds the ambient noise standards by 10 dB (A) or more given in the corresponding columns against any area/zone, make a complaint to the authority.

(2) The authority shall act on the complaint and take action against the violator in accordance with the provisions of these rules and any other law in force.

8. Power to prohibit etc. Continuance of music sound or noise. - (1) If the authority is satisfied from the report of an officer in-charge of a police station or other information received by him that it is necessary to do so in order to prevent annoyance, disturbance, discomfort or injury or risk of annoyance, disturbance, discomfort or injury to the public or to any person who dwell or occupy property on the vicinity, he may, by a written order issue such directions as he may consider necessary to any person for preventing, prohibiting, controlling or regulating:

(a) the incidence or continuance in or upon any premises of -

(i) any vocal or instrumental music.

(ii) sounds caused by playing, beating, clashing, blowing or use in any manner whatsoever of any instrument including loudspeakers, public address systems, appliance or apparatus or contrivance which is capable of producing or re-producing sound, or

(b) the carrying or in or upon, any premises of any trade, avocation or operation or process resulting in or attended with noise.

(2) The authority empowered under Sub-rule (1) may, either on its own motion, or on the



application of any person aggrieved by an order made under Sub-rule (1), either rescind, modify or after any such order:

"Provided that before any such application is disposed of, the said authority shall afford to the applicant an opportunity of appearing before it either in person or by a person representing him and showing cause against the order and shall, if it rejects any such application either wholly or in part, record its reasons for such rejection."

Further, it is to be stated that because of urbanization or industrialization the noise pollution may in some area of a city/town might be exceeding permissible limits - prescribed under the rules, but that would not be a ground for permitting others to increase the same by beating of drums or by use of voice amplifiers, loudspeakers or by such other musical instruments and, therefore, rules prescribing reasonable restrictions including the rules for the use of loudspeakers and voice amplifiers framed under the Madras Town Nuisance Act, 1889 and also the Noise Pollution (Regulation and Control) Rules, 2000 are required to be enforced. There is lack of awareness among the citizens as well as the Implementation Authorities about the Rules or its duty to implement the same. Noise polluting activities which are rampant and yet for one reason or the other, the aforesaid rules or the rules framed under various State Police Acts are not enforced."

26. In *Vinayaga Chathurthi Madhya Kuzhi v. State of Tamil Nadu* [1997 MLJ (Cri) 142] decided by another Division Bench of this Court, consisting of Swami, C.J. and Lakshmanan, J. (as the learned Judge then was), a right to take Vinayaga idol in procession along a particular route was claimed. The Bench held that it was not an absolute right but subject to regulation and imposition of restrictions. The Bench pointed out that the rights guaranteed under Articles 19(1)(b), 25 and 26 of the Constitution of India could not be claimed as absolute rights and observed that any right claimed as absolute right would not be exercisable as there would be no orderliness in exercising such a right and as a



result thereof it would affect the rights of the other persons who also enjoyed similar rights that Articles 25 and 26 opened with the words 'subject to public order, morality and health' that temporary orders for prohibition of meeting or procession to prevent imminent breach of peace were reasonable restrictions."

(iii) In **Commissioner of Police and Ors. v. Acharya Jagadishwarananda Avadhuta and Ors.** [(2004) 12 SCC 770], the Hon'ble Apex Court held as under:

"9. The protection guaranteed under Articles 25 and 26 of the Constitution is not confined to matters of doctrine or belief but extends to acts done in pursuance of religion and, therefore, contains a guarantee for rituals, observances, ceremonies and modes of worship which are essential or integral part of religion. What constitutes an integral or essential part of religion has to be determined with reference to its doctrines, practices, tenets, historical background etc. of the given religion. (See generally the Constitution bench decisions in *The Commissioner v. L. T. Swamiar of Srirur Mutt* (1954 SCR 1005), *SSTS Saheb v. State of Bombay* [1962 (Supp) 2 SCR 496], and *Seshammal v. State of Tamilnadu* [1972] 3 SCR 815, regarding those aspects that are to be looked into so as to determine whether a part or practice is essential or not). What is meant by 'an essential part or practices of a religion' is now the matter for elucidation.

Essential part of a religion means the core beliefs upon which a religion is founded. Essential practice means those practices that are fundamental to follow a religious belief. It is upon the cornerstone of essential parts or practices the superstructure of religion is built. Without which, a religion will be no religion. Test to determine whether a part or practice is essential to the religion is - to find out whether the nature of religion will be changed without that part or practice. If the taking away of that part or practice could result in a fundamental change in the character of that religion or in its belief, then such part could be treated as an essential or integral part. There cannot be additions or subtractions to such part. Because it is the very essence of that religion and alterations will change its fundamental character. It is such permanent essential



parts is what is protected by the Constitution. No body can say that essential part or practice of one's religion has changed from a particular date or by an event. Such alterable parts or practices are definitely not the 'core' of religion where the belief is based and religion is founded upon. It could only be treated as mere embellishments to the non-essential part or practices.

58. The exercise of the freedom to act and practice in pursuance of religious beliefs is as much important as the freedom of believing in a religion. In fact to persons believing in religious faith, there are some forms of practicing the religion by outward actions which are as much part of religion is the faith itself. The freedom to act and practice can be subject to regulations. In our Constitution subject to public order health and morality and to other provisions in Part III of the Constitution. However, in every case the power of regulation must be so exercised with the consciousness that the subject of regulation is a fundamental right of religion, and as not to unduly infringe the protection given by the Constitution. Further in the exercise of the power to regulate, the authorities cannot sit in judgment over the professed views of the adherents of the religion and to determine whether the practice is warranted by the religion or not. That is not their function (See *Jesse Cantwell v. State of Connecticut* (1939 84 L.Ed. 1213-1218, *United States v. Ballard*, 1943 88 L.Ed. 1148, 1153, 1154).

68. This Court has explained in a number of decisions that what constitutes an essential part of a religion is primarily to be ascertained with reference to the doctrine of that religion itself and the Court cannot say that a belief or practice is not part of religion. This proposition was authoritatively laid down by the Constitution Bench of this Court (Seven Judges) in *Shirur Mutt's case* (supra) as extracted in paras (supra). This is the most essential part of the fundamental right of freedom of religion. This Court in subsequent cases have followed the proposition in *Shirur Mutt's case* (supra), *Sardar Syedna Taher Saifuddin Saheb v. State of Bombay* (Five Judges) AIR 1962 SC 853 & in *Seshanmmal v. State of Tamil Nadu*, [1972] 3 SCR 815 (five Judges) at page 21.

69. In the case of *Ratilal Pannachand Gandhi v. State of Bombay* (supra), this Court emphasized that "No outside



authority has any right to say that these are not essential parts of religion and it is not open to a secular authority of the State to restrict and prohibit them in any manner they like under the guise of administering the trust estate." This Court quoted with approval *Jamshedji v. Soonabai* (supra) where the Bombay High Court held, "if this is the belief of the community.....a secular judge is bound to accept that belief - it is not for him to sit in judgment on that belief, he has no right to interfere with the conscience of a donor who makes a gift in favour of what he believes to be the advancement of his religion and the welfare of his community or mankind."

70. As late as 2002, this Court has reiterated this in **N. Adithayan v. Tranvancore Devaswom Board** [2002] SUPP 3 SCR 76. This Court observed that "as to what really constitutes an essential part of religion or religious practice has to be decided by the Courts with reference to the doctrine of a particular religion or practices regarded as parts of religion."

(iv) In **Re: Noise Pollution - Implementation of the Laws for restricting use of loudspeakers and high volume producing sound systems** [(2005) 5 SCC 733] the Hon'ble Apex Court held thus:

"11. Those who make noise often take shelter behind Article 19(1) A pleading freedom of speech and right to expression. Undoubtedly, the freedom of speech and right to expression are fundamental rights but the rights are not absolute. Nobody can claim a fundamental right to create noise by amplifying the sound of his speech with the help of loudspeakers. While one has a right to speech, others have a right to listen or decline to listen. Nobody can be compelled to listen and nobody can claim that he has a right to make his voice trespass into the ears or mind of others. Nobody can indulge into aural aggression. If anyone increases his volume of speech and that too with the assistance of artificial devices so as to compulsorily expose unwilling persons to hear a noise raised to unpleasant or obnoxious levels then the person speaking is violating the right of others to a peaceful, comfortable and pollution-free life guaranteed by Article 21. Article 19(1) A cannot be pressed into service for defeating the fundamental right



guaranteed by Article 21.

18. In Chambers 21st Century Dictionary, the definition of noise has undergone a change. Noise pollution stands carved out as a phrase separately from noise. The two are defined as under :

"Noise - a sound; a harsh disagreeable sound, or such sound; a din. pollution - an excessive or annoying degree of noise in a particular area, e.g. from traffic or aeroplane engines."

19. "Pollution" is a noun derived from the verb "pollute". Section 2 of the Environment (Protection) Act, 1986 defines "environmental pollution" to mean the presence in the environment of any environmental pollutant. Section 2 of the said Act defines "environmental pollutant" to mean any solid, liquid or gaseous substance present in such concentration as may be, or tends to be injurious to environment.

20. Thus, the disturbance produced in our environment by the undesirable sound of various kinds is called "noise pollution".

22. Noise is a type of atmospheric pollution. It is a shadowy public enemy whose growing menace has increased in the modern age of industrialization and technological advancement. Although a soft rhythmic sound in the form of music and dance stimulates brain activities, removes boredom and fatigue, but its excessiveness may prove detrimental to living things. Researches have proved that a loud noise during peak marketing hours creates tiredness, irritation and impairs brain activities so as to reduce thinking and working abilities. Noise pollution was previously confined to a few special areas like factory or mill, but today it engulfs every nook and corner of the globe, reaching its peak in urban areas. Industries, automobiles, rail engines, aeroplanes, radios, loudspeakers, tape recorders, lottery ticket sellers, hawkers, pop singers, etc., are the main ear contaminators of the city area and its market place. The regular rattling of engines and intermittent blowing of horns emanating from the caravan of automobiles do not allow us to have any respite from irritant noise even in suburban zones.



23. In the modern days noise has become one of the major pollutants and it has serious effects on human health. Effects of noise depend upon sound's pitch, its frequency and time pattern and length of exposure. Noise has both auditory and non-auditory effects depending upon the intensity and the duration of the noise level. It affects sleep, hearing, communication, mental and physical health. It may even lead to the madness of people.

24. However, noises, which are melodious, whether natural or man-made, cannot always be considered as factors leading to pollution.

25. Noise can disturb our work, rest, sleep, and communication. It can damage our hearing and evoke other psychological, and possibly pathological reactions. However, because of complexity, variability and the interaction of noise with other environmental factors, the adverse health effects of noise do not lend themselves to a straightforward analysis.

63. Different countries of the World have enacted different legislations to control the noise pollution. For Example, in England there is a Noise Abatement Act, 1960. Section 2 of this Act provides that loudspeakers should not be operated between the hours of 9:00 in the evening and 8:00 in the following morning for any purpose and at any other time for purpose of advertisement and entertainment, trade or business. Control on Pollution Act of 1974, contains provisions for controlling noise pollution and it provides noise to be actionable must amount to nuisance in the ordinary legal sense. Section 62 of the English Control of Pollution Act, 1974, operates as perfect control for 'Street Noise'. This provision has been defined as a highway and any other road, footway or square or court which is for the time being open to public. In Japan, there is Anti Pollution Basic Law which helps to control the pollution including noise pollution.

103. The Air (Prevention and Control of Pollution) Act, 1981 Noise was included in the definition of air pollutant in Air (Prevention and Control of Pollution) Act in 1987. Thus, the provisions of the Air Act, became applicable in respect of noise pollution, also.



104. The Environment (Protection) Act, 1986. Although there is no specific provision to deal with noise pollution, the Act confers powers on Government of India to take measures to deal with various types of pollution including noise pollution.

179. It is hereby directed as under:-

I. xxxxxxxxxxxxxxxxxxxxxxxxx

II. **Loudspeakers**

1. The noise level at the boundary of the public place, where loudspeaker or public address system or any other noise source is being used shall not exceed 10 dB(A) above the ambient noise standards for the area or 75 dB(A) whichever is lower.

2. No one shall beat a drum or tom-tom or blow a trumpet or beat or sound any instrument or use any sound amplifier at night (between 10. 00 p.m. and 6.a.m.) except in public emergencies. 3. The peripheral noise level of privately owned sound system shall not exceed by more than 5 dB(A) than the ambient air quality standard specified for the area in which it is used, at the boundary of the private place.

III. xxxxxxxxxxxxxxxxx

IV. xxxxxxxxxxxxxxxxx

V. xxxxxxxxxxxxxxxxx

(v) In **Farhd K. Wadia v. Union of India (UOI) and Ors.**

[(2009) 2 SCC 442], the Hon'ble Supreme Court held as under:

"18. Interference by the court in respect of noise pollution is premised on the basis that a citizen has certain rights being 'necessity of silence', 'necessity of sleep', 'process during sleep' and 'rest', which are biological necessities and essential for health. Silence is considered to be golden. It is considered to be one of the human rights as noise is injurious to human health which is required to be preserved at any cost. [See Noise Pollution, Laws & Remedies by Justice Bhagabati Prosad Banerjee]

19. The Calcutta High Court in several judgments and in particular in Om Birangana Religious Society v. State of West Bengal [decided on 11th August, 1998] issued various directions; some of them being:

(a) there will be complete ban on the use of
horn type loud-speakers within city



residential areas and also prohibit the use of play back of pre- recorded music etc. through such horn type loud- speakers unless used with sound-limiter.

(b) In cultural functions which are live functions, use of such pre-recorded music should not be used excepting for the purpose of announcement and/ or actual performance and placement of speaker boxes should be restricted within the area of performance facing the audience. No sound generating devise should be placed outside the main area of performance.

(c) Cultural programmes in open air may be held excepting at least before three days of holding Board/ Council Examinations to till examinations are completed in residential areas or areas where educational institutions are situated.

(d) The distance of holding such functions from the silence zones should be 100 meters and in so far as Schools, Colleges, Universities, Courts are concerned, it will be treated as silence zones till the end of the office hours and/ or the teaching hours. Hospitals and some renowned and important Nursing Homes will be treated as silence zones round the clock.

[See Noise Pollution, Laws & Remedies by Justice Bhagabati Prosad Banerjee, pages 327-328]

20. This Court has also taken suo motu cognizance as regards noise pollution. It passed various orders from time to time in Noise Pollution, In Re. v. Union of India and Anr. which are reported in (2005) 5 SCC 727, (2005) 5 SCC 728, (2005) 5 SCC 730 and (2005) 5 SCC 731."

11. Perusal of the letter of one Mr. L. Baburaj, Ashish Nivas, Thiruvananthapuram dated 27.02.2017, addressed to the Registrar, High Court of Kerala, also indicates that the Director General of Police, Kerala, has issued a notification, and the same is extracted hereunder:-



Nb.U6-30380/2002
POLICE HEADQUARTERS,
KERALA, THIRUVANANTHAPURAM.
DATED 28.11.2002.

CONDITIONS FOR ISSUE OF LOUDSPEAKER LICENCE

NOTIFICATION

Whereas in view of the issuance of the Noise Pollution (Regulation and Control) Rules, 2000 under the Environment (Protection) Act, 1986 by the Government of India and in accordance with the regulatory functions under sections 19 and 20 of the Kerala Police Act, 1960, it has become necessary to revise the conditions for granting licences for use of loudspeakers, in exercise of the powers conferred under section 16 of the Kerala Police Act, the following regulations regarding grant of licences for use of loudspeakers are issued.

1. The competent authority in the Police Department for issue of licence for use of loudspeaker will be the Sub Divisional Police Officer or the Superintendent of Police / Commissioner of Police having local jurisdiction.
2. Application for licence will be submitted to the competent authority, 7 days in advance.
3. Fees as prescribed by the Govt from time to time will be levied from the applicants.
4. The application for use of loudspeaker should be specific with regard to the date, place, time and purpose for which it has been sought.
5. License will be issued in the form prescribed for the purpose, mentioning various conditions attached. General permit will not be issued as it amounts to violation of the provisions of Noise Pollution (Regulation and Control) Rules, 2000.



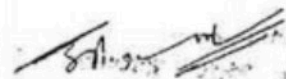
6. Use of loudspeaker between 10 PM and 6 AM is prohibited except in closed premises like auditoria, conference rooms, community halls and banquet halls for communication within as defined in Rule 5 of the Noise Pollution (Regulation and Control) Rules.
7. Licence for use of loudspeakers will be issued taking into account the zone as notified by the Government of Kerala vide SRO No. 289/2002 and the permissible ambient air quality standards prescribed for each zone as follows:

Area Code	Category of Area / Zone	Level of sound in decibels	
		Day Time	Night Time
(A)	Industrial Area	75	70
(B)	Commercial Area	65	55
(C)	Residential Area	55	45

8. No licence shall be issued for use of loudspeakers within the silence zone (area comprising 100 metres around hospitals, educational institutions, courts, religious places, reserve forests and wildlife sanctuaries).
9. No licence shall be issued for use of loudspeaker within 100 metres around public offices.
- ✓ 10. Use of loudspeaker on a vehicle in motion is prohibited.
11. No loudspeaker will be allowed to be used on public roads or near busy junctions which is likely to cause public nuisance and hindrance to the smooth flow of traffic.
12. Loudspeakers will not be installed beyond 300 metres from the location of the mike and amplifier.
13. Licence will be issued only for box type loudspeakers, each box containing not more than two speakers.
14. The number of such boxes which can be fitted to a vehicle will be limited to two.



15. Licences for use of loudspeakers in other than vehicles v. specify the number of boxes allowed to be installed.
16. (a) Licencee shall stop the operation of loudspeaker at the direction of a police officer not below the rank of a Sub Inspector of Police on grounds of public nuisance or in the interest of maintenance of law and order.
- (b) A licensee violating the conditions of the licence and / or failing to comply with the direction of a police officer not below the rank of SI of Police shall be dealt with under the provisions of KP Act, 1960.
- (c) The competent authority (SDPO / SP / CP) may, where necessary, take steps to prosecute the violators as provided in section 15 of the Environment (Protection) Act, 1986 (which provides for a penalty of imprisonment upto five years or with maximum fine of Rupees One lakh or with both).


K J JOSEPH
Director General of Police.

12. In the light of the statutory provisions to regulate and control noise pollution, decisions of the Hon'ble Supreme Court and High Courts, guidelines and circulars issued under the relevant statutes, it is imperative on the part of the Chief Secretary to the Government of Kerala; Additional Chief Secretary, Department of Home, Government of Kerala; State Police Chief, Government of Kerala; Kerala State Pollution Control Board, represented by its Member Secretary; District Collectors and District Magistrates of all the districts of Kerala; Secretaries of the Travancore Devaswom Board, Cochin



Devaswom Board, Guruvayoor Devaswom Board, Koodalmanikyam Devaswom, Malabar Devaswom Board and Kerala State Wakf Board, to scrupulously implement the statutory provisions, the decisions stated *supra*, and the guidelines and circulars issued under various enactments, so as to regulate and control noise pollution by the use of loud speakers.

13. Added further, we also direct the abovesaid respondents that if there is any violation of the statutory provisions / instructions issued from time to time, strict action should be taken against the violators.

14. Authorities are directed to grant permission for the use of loud speakers under the statutory provisions only, and if any permission is granted, there shall not be any violation to the statutory provisions

Additional Secretary to the Government, Home Department and State Police Chief are directed to monitor strict implementation of the directions issued.

Sd/-
S. MANIKUMAR
CHIEF JUSTICE

Sd/-
SHAJI P. CHALY
JUDGE

///TRUE COPY/// P.A. TO JUDGE

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